

26STCV06654 26STCV06654

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Case Number: 26STCV06654 Hearing Date: August 18, 2026 Dept: 316

BACKGROUND

This case is a false advertisement dispute. Plaintiff Michael Gonzales alleges that Defendant Nutrition 2 Go LLC's packaging falsely advertises the amount of product customers would receive.

On March 2, 2026, Plaintiff filed a complaint against Defendant. The complaint alleges two causes of action stemming from the facts alleged above.

On June 22, 2026, Defendant filed a Motion to Quash Service of Summons and Dismissal.

On August 5, 2026, Plaintiff filed an opposition.

On August 11, 2026, Defendant filed a reply.

TENTATIVE RULING

Defendant's Motion to Quash Service of Summons is GRANTED. This case is dismissed without prejudice.

LEGAL STANDARD

"A defendant, on or before the last day of his or her time to plead or within any further time that the

court may for good cause allow, may serve and file a notice of motion . . . (1) To quash service of summons on the ground of lack of jurisdiction of the court over him or her.” (Code Civ. Proc., § 418.10, subd. (a).)

“California courts may exercise jurisdiction on any basis that is not inconsistent with the state and federal Constitutions. Thus, the inquiry in California is whether the assertion of personal jurisdiction comports with the limits imposed by federal due process.” (Young v. Daimler AG (2014) 228 Cal.App.4th 855, 865 [internal quotations and citations omitted].) Due process permits courts to exercise personal jurisdiction over nonresidents who have “minimum contact” with the forum state such that the exercise of jurisdiction does not offend “traditional notions of fair play and substantial justice.” (Int’l Shoe Co. v. Wash. (1945) 326 U.S. 310, 316.)

“When a defendant moves to quash service of process on jurisdictional grounds, the plaintiff has the initial burden of demonstrating facts justifying the exercise of jurisdiction. Once facts showing minimum contacts with the forum state are established, however, it becomes the defendant’s burden to demonstrate that the exercise of jurisdiction would be unreasonable.” (Vons Companies, Inc. v. Seabest Foods, Inc. (1996) 14 Cal.4th 434, 445 (Vons).)

REQUEST FOR JUDICIAL NOTICE

Plaintiff requests the

Court take judicial notice of two exhibits: (1) the webpage on the website of the U.S. Census Bureau identifying the population of the State of California and the population of the United States as of July 1, 2025; and (2) the webpage on the website of the Governor of the state of California at:

[https://www.gov.ca.gov/2024/04/16/california-remains-the-worlds-5th-largest-economy/#:~:text=California%20remains%20the%205th%20largest,of%20Economic%20Analysis%20\(BEA\).](https://www.gov.ca.gov/2024/04/16/california-remains-the-worlds-5th-largest-economy/#:~:text=California%20remains%20the%205th%20largest,of%20Economic%20Analysis%20(BEA).)

These two exhibits come from official government sources. Therefore, the Court will take judicial

notice of said exhibits under Evidence Code section 452, subdivision (h).

DISCUSSION

I.

General

Jurisdiction

“Personal jurisdiction may be either general or specific.” (Vons, supra, 14 Cal.4th at p. 449 [internal citations omitted].) “A defendant that has substantial, continuous, and systematic contacts with the forum state is subject to general jurisdiction in the state, meaning jurisdiction on any cause of action.” (HealthMarkets, Inc. v. Superior Court (2009) 171 Cal.App.4th 1160, 1167.)

“General jurisdiction, as its name implies, extends to any and all claims brought against a defendant. Those claims need not relate to the forum State or the defendant’s activity there; they may concern events and conduct anywhere in the world. But that breadth imposes a correlative limit: Only a select set of affiliations with a forum will expose a defendant to such sweeping jurisdiction. In what [the Supreme Court] ha[s] called the paradigm case, an individual is subject to general jurisdiction in her place of domicile. And the equivalent forums for a corporation are its place of incorporation and principal place of business.” (Preciado v. Freightliner Custom Chassis Corp. (2023) 87 Cal.App.5th 964, 976 [citing Ford Motor Co. v. Montana Eighth Judicial District Court (2021) 592 U.S. 351, 258-59].)

Here, Defendant is an Idaho limited liability company with its principal place of business located in Eagle, Idaho. (See Hodges Decl., ¶¶ 3-4.) It has no physical presence, office, agents, or employees in California. (Id. at ¶ 5.) It also does not produce any of its products in California; its products are produced in Montana by a third-party manufacturer. (Id. at ¶ 6.) The Court finds that it does not have general jurisdiction over Defendant because neither its place of incorporation nor its principal place of business is in California. (See Preciado v. Freightliner Custom Chassis Corp. (2023) 87 Cal.App.5th 964, 976.)

II.

Personal

Jurisdiction

A nonresident may be

subject to specific jurisdiction if a three-prong test is met.

“First, the defendant must have purposefully availed itself of the state's benefits. Second, the controversy must be related to or arise out of the defendant's contacts with the state. Third, considering the defendant's contacts with the state and other factors, California's exercise of jurisdiction over the defendant must comport with fair play and substantial justice.” (Gilmore Bank v. AsiaTrust New Zealand Ltd. (2014) 223 Cal.App.4th 1558, 1568 [internal citations and emphasis omitted].)

A.

First

Prong

To satisfy the first

prong, there must be some evidence of “express aiming or intentional targeting” of California residents. (Pavlovich v. Superior Court (2002) 29 Cal.4th 262, 273.) Thus, the plaintiff must demonstrate that the defendant “purposefully directed” its activities at California residents. (Burger King Corp. v. Rudzewicz (1985) 471 U.S. 462, 472 [“Where a forum seeks to assert specific jurisdiction over an out-of-state defendant who has not consented to suit there, this ‘fair warning’ requirement is satisfied if the defendant has ‘purposefully directed’ his activities at residents of the forum. . . .”].)

Here,

Plaintiff contends

that this first prong is satisfied because Defendant sells its products to EoS Fitness, which operates numerous gyms throughout California. (See Opp'n, p. 9:2-9.) Plaintiff also contends that this prong is satisfied because Defendant's products are sold via EoS Fitness' website. (See id. at p. 11:12-14:17.)

The Court finds that these

connections are insufficient. Simply placing a product into the stream of commerce does not mean that a party's conduct was directly targeted at a forum

state. (See *Asahi Metal Indus. Co. v. Superior Court of California, Solano County* (1987) 480 U.S. 102, 112 [“The placement of a product into the stream of commerce, without more, is not an act of the defendant purposefully directed toward the forum State.”].) Even if the party presumed their product would be sold and purchased in the forum state, that alone does not mean their conduct was directly targeted at the forum state. (See *ibid.* [“But a defendant’s awareness that the stream of commerce may or will sweep the product into the forum State does not convert the mere act of placing the product into the stream into an act purposefully directed toward the forum State.”].) Furthermore, there are no allegations of additional conduct by Defendant demonstrating its intent to serve the California market. For instance, there are no allegations that Defendant: (1) designed the product to be marketed in California; (2) advertised in the state; (3) established channels for providing regular advice to customers in the state; or (4) marketed their product through a distributor who is serving as its California sales agent. (See *ibid.* [“Additional conduct of the defendant may indicate an intent or purpose to serve the market in the forum State, for example, designing the product for the market in the forum State, advertising in the forum State, establishing channels for providing regular advice to customers in the forum State, or marketing the product through a distributor who has agreed to serve as the sales agent in the forum State.”].)

Put simply, even though Defendant’s products were sold in California via the “stream of commerce,” there are no allegations that Defendant’s conduct was specifically targeted at California consumers. Therefore, the first prong is not satisfied. (See *Burger King Corp. v. Rudzewicz* (1985) 471 U.S. 462, 472

In opposition, Plaintiff cites numerous cases that purport to support its position. However, many of those cases are distinguishable or do not support Plaintiff’s position. For instance, *Secrest Machine Corp. v. Superior Court* (1983) 33 Cal.3d 664 involved the direct sale of a product by an out-of-state manufacturer to a California business for use in the state. (See *id.* at p. 670 [“The cause of action before us now, unlike that involved in *World-Wide Volkswagen*, arises out of a direct sale of a product by its Virginia manufacturer to a California business for use in California.”].) The same dynamic is present in *Buckeye Boiler Co. v. Superior Court* (1969) 71 Cal.2d 893, 904, wherein the outside manufacturer was directly selling products to a California company for use in the state. [“In the present case, it is clear that defendant derives

substantial economic benefit from the sale and use of its products in California; it currently derives about \$30,000 annually in gross sales revenues from its direct sales of certain pressure tanks to the Cochin Manufacturing Company plant in South San Francisco.”].) The same can be said about *Ford Motor Co. v. Montana Eighth Jud. Dist. Ct.* (2021) 592 U.S. 351, wherein Ford “had advertised, sold, and serviced those two car models in both States for many years” and “conceded ‘purposeful availment’ of the two States’ markets.” (Id. at p. 365.) *As You Sow v. Crawford Laboratories, Inc.* (1996) 50 Cal.App.4th 1859 also does not assist Plaintiff because the defendant there “purposefully consummated business arrangements with California companies on 16 separate occasions so it could profit from the products’ use in California.” (Id. at p. 1871.) Lastly, *Herbal Brands, Inc. v. Photoplaza, Inc.* (9th Cir. 2023) 72 F.4th 1085, does not support Plaintiff’s position because the defendants operated their own online storefront and directly sold goods to Arizona residents as part of their regular course of business. (See id. at p. 1095 [“Defendants expressly aimed their conduct at Arizona because they allegedly sold products to Arizona residents via an interactive website in their regular course of business and caused those products to be delivered to the forum.”].)

Here, Plaintiff has not shown that Defendant targeted or purposefully directed its activities at California residents. For this reason, the first prong in establishing specific jurisdiction is not satisfied. (See *Pavlovich v. Superior Court* (2002) 29 Cal.4th 262, 273; see also *Burger King Corp. v. Rudzewicz* (1985) 471 U.S. 462.) Accordingly, specific jurisdiction cannot be established. (See *Gilmore Bank v. AsiaTrust New Zealand Ltd.* (2014) 223 Cal.App.4th 1558, 1568.)

CONCLUSION

For the reasons established above, Defendant’s Motion to Quash Service of Summons is GRANTED. This case is dismissed without prejudice.